

**AGREEMENT BETWEEN
NATIONAL FIRE SPRINKLER ASSOCIATION, INC.
AND
SPRINKLER FITTERS AND APPRENTICES LOCAL UNION NO. 704,
DETROIT, MICHIGAN
OF THE UNITED ASSOCIATION OF JOURNEYMEN AND
APPRENTICES OF THE PLUMBING AND PIPE FITTING INDUSTRY
OF THE UNITED STATES AND CANADA**

ARTICLE 1

1. This Agreement is made the 28th day of July, 2022, and operative the first day of August, 2022, by and between the National Fire Sprinkler Association, Inc. Linthicum Heights, Maryland, and Sprinkler Fitters and Apprentices Local Union No. 704, Detroit, Michigan.
2. A list of the names of those contractor members authorizing National Fire Sprinkler Association, Inc. to negotiate and execute this Agreement on whose behalf it is negotiated and executed is attached hereto and made part of hereof.
3. **RECOGNITION:** The National Fire Sprinkler Association, Inc. for and on behalf of contractors it represents that have given written authorization and all other employing contractors becoming signatory hereto, recognize the Union as the sole and exclusive bargaining representative for all Journeymen Sprinkler Fitters and Apprentices in the employ of said Employers, who are engaged in all work as set forth in Article 15 of this Agreement with respect to wages, hours and other conditions of employment pursuant to Section 9(a) of the National Labor Relations Act.

ARTICLE 2

4. This Agreement is entered into in good faith and the subscribers hereto declare their entire willingness to fulfill all requirements contained herein. It is hoped and believed that this Agreement properly respected will tend to remove the causes for industrial strife and bring about a better understanding between employer and employee.
5. This Agreement constitutes the entire Agreement between the parties and supersedes all prior negotiations, commitments, representations and undertakings. No change, modification, amendment, variation or waiver of any of the terms and conditions of this agreement, shall be valid unless executed or consented to in writing by a duly authorized representative of the Association and a duly authorized representative of the Local Union. During the term of this Agreement, contractors represented by the Association, individually or collectively, shall not have any authority to make any other agreements, verbal or written, with any agent or representative of the local union, which would change, modify, amend, vary or waive any of the terms and conditions of this Agreement.

6. Should the Union negotiate any agreement with any employer which provides more favorable employer conditions than set forth in this agreement, the Union agrees that this collective bargaining agreement shall be changed to incorporate the more favorable employer conditions should the National Fire Sprinkler Association, Inc. so desire. The NFSA and Sprinkler Fitters Local 704 agree that the following does not constitute a violation of Article 2, Section 6. Any newly organized company may sign a memorandum of understanding stating that the company shall have one year to become compliant with the current collective bargaining agreement with respect to all work in place at the time the company is organized. The memorandum of understanding shall also state that at the time of signing a contract with the union, all subsequently bid work will be at the rates set in the collective bargaining agreement, and that all terms and conditions of employment as set forth in the agreement will apply to all subsequently bid work.

ARTICLE 3

7. **TERRITORY:** The territory embraced in this Agreement shall include the counties of Wayne, Oakland, Macomb and Washtenaw in the State of Michigan.

ARTICLE 4

8. **UNION SECURITY:** All present employees covered by this Agreement, shall, as a condition of employment (and to the extent, and in the manner as provided for and permitted by state and federal laws) become members of Local Union No. 704 seven (7) days' following August 1, 2022. All new employees shall, as a condition of employment, become members of Local Union No. 704 at the end of seven (7) days' employment (to the extent, and in the manner as provided for and permitted by state and federal laws). A person not a member of the United Association shall be acceptable for employment as a Journeyman when he has produced for the employer sworn affidavits of five (5) years' experience in the sprinkler industry as a helper, apprentice, and/or Journeyman on the letterhead of his previous employer or employers.

9. The five (5) year period conforms to the period of apprentice training as set forth in the Apprenticeship Standards of the sprinkler industry.

ARTICLE 5

10. **APPRENTICESHIP:** An Apprenticeship System has been established under an "Apprenticeship Standards for the Sprinkler Fitters Industry of Detroit and Vicinity" formulated jointly by the National Fire Sprinkler Association, Inc. and the Detroit Sprinkler Fitters Local Union No. 704, United Association, in cooperation with the Apprentice Training Service, U.S. Department of Labor. The Parties mutually agree that they will abide by these Apprenticeship Standards. The selection of apprentices under this program shall be made from qualified applicants, and there shall be no discrimination with regard to a protected class as defined by the Federal Government or Michigan Law—by either the Union or the Employer—relative to employment or conditions of employment.

Effective August 1, 2017, Apprentices indentured into the Apprentice Program on and after this date shall be paid the following rates:

Class 1 -	40% of the Journeyman Rate
Class 2 -	45% of the Journeyman Rate
Class 3 -	50% of the Journeyman Rate
Class 4 -	55% of the Journeyman Rate
Class 5 -	60% of the Journeyman Rate
Class 6 -	65% of the Journeyman Rate
Class 7 -	70% of the Journeyman Rate
Class 8 -	75% of the Journeyman Rate
Class 9 -	80% of the Journeyman Rate
Class 10 -	85% of the Journeyman Rate

It is agreed that Apprentices shall be indentured the first day they commence employment in the Industry. It is further agreed that the Employer shall pay \$11.44 (including \$1.45 for RESA, in accordance with Article 18) per hour for all hours worked by all Apprentices into the National Automatic Sprinkler Industry Welfare Fund, effective August 1, 2022. There shall be no other fringe contributions paid on Apprentices during the first six (6) months.

Prior to commencing employment, prospective apprentices must attend and complete two weeks of "Boot Camp." During the first week of Boot Camp, participants shall be paid a stipend equal to Class 1 apprentice wage rates by the JATC. Participants will become Class 1 apprentices on the Monday of the second week of Boot Camp and will be employed and paid as such by their respective employers.

Effective on and after August 1, 2022, all new applicants to the Apprenticeship Program shall, as a condition of their being indentured and as part of their pre-employment physical, be required to be tested for drugs and alcohol. Local 704 reserves the right to randomly test any apprentice for drugs and alcohol during their apprenticeship without cause.

Apprentices will not go to class in their last year of apprenticeship provided the apprentices have completed their lessons and field hours. It is not the intent for apprentices to be paid for school if they don't go to school.

Apprentices shall not advance in class or pay rate unless current in their lessons, field hours, and anniversary date.

Every contractor may have at least one apprentice regardless. Any other exception to the ratio of 3:1 is at the discretion of the JATC.

ARTICLE 6

11. **WAGES**: Effective August 1, 2022, the rate of wage to be paid under this Agreement for Journeyman Sprinkler Fitters shall be Forty-Eight Dollars and Seventy-Three Cents (\$48.73) per hour for straight time work.

12. Effective August 1, 2023, there shall be an economic package increase of Two Dollars and Sixty Cents (\$2.60). This economic increase is to be distributed among wages and fringes.

Effective August 1, 2024, there shall be an economic package increase of increase of Two Dollars and Sixty Cents (\$2.60) per hour. This economic increase is to be distributed among wages and fringes.

Effective August 1, 2025, there shall be an economic package increase of increase of Two Dollars and Sixty Cents (\$2.60) per hour. This economic increase is to be distributed among wages and fringes.

Effective August 1, 2026, there shall be an economic package increase of increase of Two Dollars and Sixty Cents (\$2.60) per hour. This economic increase is to be distributed among wages and fringes.

13. The overtime rate for Journeyman Sprinkler Fitters shall be Ninety-One Dollars and Thirty Cents (\$91.30) per hour, effective August 1, 2022, for all overtime hours worked at the double-time rate (see Article 8).

The overtime rate for journeymen sprinkler fitters shall be Seventy Dollars and Two Cents (\$70.02) per hour, effective August 1, 2022, for all overtime hours worked at the time and one half rate (see Article 8).

14. Effective August 1, 2022, the wage of the Foreman shall be Four Dollars (\$4.00) per hour minimum more than the Fitter's rate. Effective August 1, 2023, the wage of the Foreman shall be Four Dollars and Twenty-Five Cents (\$4.25) per hour minimum more than the Fitter's rate. Effective August 1, 2024, the wage of the Foreman shall be Four Dollars and Fifty Cents (\$4.50) per hour minimum more than the Fitter's rate.

15. Effective January 1, 2023, the position of General Foreman shall be established. Any job that has eighteen (18) or more sprinkler fitters shall have a General Foreman named from the journeymen on the job. The wage rate of a General Foreman shall be Two Dollars (\$2.00) more than the Foreman rate.

16. Employer shall have the right to pay by check.

17. Wages shall be paid to the men on the job during working hours except that employees may be paid by check or direct deposit, with pay stubs to be postmarked by Friday.

18. Wages shall be paid on or before 4:30 P.M. each Thursday, including all wages due up to and including the previous Friday.

19. If an employee is not paid by 4:30 P.M. on Thursday, the contractor shall pay one hour's pay at the prevailing rate for each hour after 4:30 P.M. with a limit of eight (8) hours in any twenty-four (24) hour period. This eight hours' pay starts at 4:30 P.M. each twenty-four (24) hours. An exception shall be made when unavoidable weather conditions prevent the contractor from making payment on time.

20. It is further understood that the employee then has the responsibility to notify the Employer concerning the late paycheck and subsequent to notification, the Employee shall be entitled to eight (8) hours' pay for each twenty-four (24) hour period, until he receives his paycheck.

21. Each employee shall receive with his paycheck a pay stub setting forth the gross pay, identification of all deductions and the amounts thereof and the net amount of the paycheck.

ARTICLE 7

22. CARFARE: Effective August 1, 2014, there shall be a flat carfare rate of \$6.00 per day.

23. Effective August 1, 2022, the Employee shall be reimbursed up to a maximum of Twenty Dollars (\$20.00) a day for parking, with an acceptable receipt when required to pay a parking fee. Parking stubs must be submitted to the employer.

24. When men are requested during the working day at the request of the Employer to move from one job to another job or other jobs, they shall be reimbursed at the current IRS mileage rate for the distance from job to job. Distance shall be determined "as the crow flies."

25. This mileage reimbursement does not apply if the contractor is supplying transportation.

ARTICLE 8

HOURS OF WORK, OVERTIME AND SHIFTS:

26A. Any eight (8) consecutive hours shall constitute a day's work between 6:00 A.M. and 4:30 P.M. with a half hour for lunch, Monday through Friday on new construction. On an existing occupied building with documented noise restrictions, the hours between 5:00 A.M. and 5:30 P.M. Monday through Friday, may be worked excluding thirty minutes for lunch. The employer shall provide documentation with the notification to the Union when flexible hours shall be worked.

The day shift work week shall be forty hours between Monday at 6:00 A.M. and Friday at 4:30 P.M., on new construction.

On any existing building, the hours between 6:00 A.M. and 5:30 P.M. Monday through Friday, excluding thirty minutes for lunch, may be worked. The employer shall notify the Union when flexible hours shall be worked.

27. SHIFTS: Any shifts with a start time of 9:00 A.M. or later will be considered off hours. The pay for off hours shall be at journeyman's wage plus fifteen percent (15%) for work on the second and/or third shifts. If the member works an off hours shift Monday, Tuesday, Wednesday or Thursday and no work is provided the following weekday, the

previous shift will be paid at double time rate. All employers must notify the union prior to the commencement of off hours work.

28. On all buildings that are occupied and the hours are not under the control of the contractor, and the hours do not fall into the category of the regular work or the shift clause cannot apply, the contractors may bid the "off hours" at straight time plus 15%. Off hours are defined as any eight (8) consecutive hours excluding one-half hour for lunch outside the regular working hour as defined in Article 8A starting at 12:01 A.M. Monday and ending on the fifth day after eight (8) hours of work has been completed. This paragraph shall not apply to new construction, emergency work, or if there are other building trades personnel on the same job or on Saturdays, Sundays and Holidays.

29. It is understood that prior to the initiation of the "off hours" shift, the owner of such building (or owner's representative), or occupant shall provide a written confirmation as to the necessity that the work in the above paragraph be done during the "off hours" period and a copy of this confirmation be sent to the Local Union within 48 hours.

30. OVERTIME: Effective August 1, 2014 all overtime, that is work outside of the established shifts shall be at the rate of time and one half for the ninth and tenth consecutive hours worked on the day shift on Monday through Friday. All overtime hours worked beyond the tenth hour Monday through Friday shall be at double time. Effective August 1, 2014 the first eight hours of work on Saturdays between 7 A.M. and 4:30 P.M. shall be at the rate of time and one half. All hours worked beyond the first eight hours on Saturdays, as well as Sundays and Holidays shall be at double time.

Four 10-hour straight time days may be utilized in holiday weeks only when mutually agreed by Local 704 and the contractor. Four 10-hour straight time days may be worked if outside the contractor's control.

The following days shall be considered Holidays: New Year's Day, Memorial Day, July 4th, Labor Day, Thanksgiving Day, and Christmas Day. When one of the above Holidays falls on Saturday the previous Friday shall be considered the holiday and all work on said day shall be at the double time rate. When one of the holidays falls on Sunday the following Monday shall be considered the holiday and all work performed on said day shall be at the double time rate.

31. Men shall report for work at the designated starting time and shall be paid from the time they start work.

32. It should be understood that when shifts are used, a minimum of two men (two Journeymen, a Journeyman and an Apprentice) shall work on each shift. However, under certain condition it is recognized that one (1) fitter may be sent to do small bidding work in accordance with all Federal and State safety laws. It is further understood that should an Employee work on two shifts during the course of any twenty-four (24) hour period, he would receive double time for the second shift.

33. It is further agreed that any workman after being hired or reporting for work at the regular time and for whom no work is provided, shall receive pay for four (4) hours at the prevailing rate of wage as established in Article 6, unless he has been notified before leaving

home not to report. It is also agreed that any workman after working in the morning and having started work after the lunch period and for whom no work is provided, shall receive four (4) hours' pay at the prevailing rate of wage for the afternoon. An exception shall be made when strike conditions make it impossible to put such an employee to work or any stoppage of work is occasioned thereby, or any workman leaves work of his own accord.

34. Any Employee injured on the job, requiring a doctor's care and submitting a medical report to verify his inability to return to work that day, shall be paid a full day's wage for the day of injury.

35. When an employee, unable to work, due to a job injury is given doctor's permission to return to work he shall return to the Employer. In the event said Employer has no work available and no other Employer signatory to this Agreement has a call for men at the local union office, then the Employee shall be given a lay off slip by the Employer.

36. It is mutually agreed that overtime is not in the best interest of the parties to this Agreement, therefore, there was established a Joint Overtime Committee of six, 3 appointed by the Union and 3 appointed by the N.F.S.A. to meet, review and act upon all Contractor requests for overtime when there is unemployment in the area. Effective August 1, 2014, the Joint Overtime Committee's responsibilities shall be transferred to the Labor Management Cooperation Committee.

37. It is the objective that only emergency overtime is allowed. Emergency overtime shall be defined as "only that overtime necessary to restore an existing system to service." Each Contractor shall notify in writing the Chairman and Secretary of the Labor Management Cooperation Committee within 48 hours of all emergency overtime that he has worked.

38. Should the Committee be dissatisfied with the Contractor relative to the emergency overtime, the Contractor shall be required to appear before the Committee for an explanation and a discussion by the Committee.

39. All other requests for overtime must be submitted in writing to the Secretary and Chairman of the Labor Management Cooperation Committee by the Contractor and this overtime cannot be worked until approved by the Committee in writing.

40. A monthly report of overtime worked shall be forwarded to the Chairman and Secretary of the Labor Management Cooperation Committee when the industry is at full employment.

ARTICLE 9

41. **SUPERINTENDENTS:** Inasmuch as the Superintendent is the agent of the Employer, the Employer may select anyone he sees fit to act as Superintendent.

ARTICLE 10

42. **PRODUCTION OF LABOR:** It is agreed that a fair day's work will be performed at all times and that the highest possible standard of work will be maintained. There shall be no limitation of the amount of work to be performed. No fitter or apprentice working for an Employer shall work overtime for another Employer. There shall be no restriction as to the use of machinery, tools and equipment. Any such tools, machinery and equipment specifically disapproved as unsafe by the OSHA Safety Standards shall not be used.

43. There shall be no restriction as to the use of materials. There shall be no restriction as to the manner in which work shall be done. Employers are at liberty to discharge whomever they desire for just cause, but when Employees are discharged, they shall be paid in full.

44. Each employee, subject to lay-off or discharge, shall receive a UA Standard of Excellence Dismissal Report, in a form provided by the Union, from the Contractor with his final check, with information included on the form as to the reason for termination. Each employee shall be given a full day's pay of the layoff by paper check with corresponding pay stub.

ARTICLE 11

45. The Employer shall retain all rights, powers and authority he had prior to entering into this Agreement, including but not limited to, the sole right to manage his business and direct his work force, and to man his jobs; to determine the number of men to be employed, when they will be employed and how they will be employed; to judge the satisfactory performance of work by a workman; to select and utilize any type of material and safe equipment on or off the jobsite; to maintain order and efficiency on the jobsite including the right to hire, assign, transfer and direct his workmen and determine their qualifications; to select and appoint supervision; to determine whether or not a Foreman will be a working or non-working Foreman; and to determine the starting and quitting time and the number of hours to be worked. The exercise of the foregoing powers and rights shall be limited only by the express and specific terms of this Agreement.

46. The Employer shall not subcontract any work covered by this Agreement unless subcontractor is signatory to an Agreement with Local 704.

46A. If no signatory contractor is available, then the Employer shall provide one member for each non-member used by the non-signatory contractor and/or supplier; subject to compliance with the provisions of the Local 704 Apprenticeship Standards.

47. The Union shall provide men for all jobs of the Employer's which come within the jurisdiction of the union. There shall be no limitation imposed by the Union upon the amount of work any Employee may perform.

48. When the Union is unable to furnish Sprinkler Fitters who are members of Local 704, the Contractor may obtain U.A. Sprinkler Fitters and/or U.A. Building Tradesmen from any source available to the Contractor, and lastly, any other manpower that might be available.

When the contractor brings in a UA Sprinkler Fitter Foreman from a local other than Local 704, the contractor shall make reasonable efforts to inform Local 704 before the Fitter begins working in Local 704 territory.

49. On large jobs, the Employer will be notified by the Local Union Office in writing as to which one of the employees on the job is designated as the steward. The Local Union Office shall be advised as to the transfer or lay off of said steward by the Employer 24 hours prior to said action. No steward shall be transferred for the purpose of termination.

ARTICLE 12

50. **MATERIALS AND EQUIPMENT AND FABRICATION:** The Union shall accept all materials and equipment as delivered by or for the Employer and the unloading, handling and installing of such material and equipment shall be performed by Employees covered by this Collective Bargaining Agreement.

51. All work required for the assembling and fabrication of welded pipe formations shall be performed either on the jobsite by Local 704 Journeymen and Apprentices receiving the rates in this Agreement or off the jobsite by any one of the Employer's choice.

52. At the option of the Employer the work described above may be placed in a pipe fabrication shop performed by U.A. Building Trades Journeymen or Apprentices at the Sprinkler Fitter Journeyman and/or Apprentice rates established in the area in which the shop is located but the Union shall accept and install all welded pipe formations.

53. The welding provisions above also apply to CO-2 and fire extinguisher systems.

54. All brazing or soldering of copper pipe done in the sprinkler industry shall be fabricated and assembled by Journeymen and Apprentices on the jobsite.

55. **MAKING ON FITTINGS:** It is understood and agreed that the Employer shall have the right to make-on only one (1) screwed fitting on threaded pipe or one (1) glued fitting on plastic permanently tight in the factory for shipment to any job within the territory of the Local Union and that the Employees covered by this Agreement shall install this material without objection or interruption.

55A. All mechanical fittings, saddles, couplings or devices shall be installed on the jobsite by UA Building Trades journeymen and/or apprentices of Sprinkler Fitters Local 704.

56. The foregoing shall, however, not apply to spool pieces, feed main nipples and risers, and pipe fittings that must be hot dipped.

ARTICLE 13

57A. Tools will be furnished to the Employees. At the close of each day, Employees shall see that each tool is put in its proper place and that the chests and lockers are left in a place as

safe from theft and injury as possible. No Employee shall be allowed to carry tools or materials belonging to the contractor in his automobile except for small hand tools. Small hand tools shall be defined as channel-locks, torpedo level, measuring device, a top beam ratchet, a pipe wrench no longer than ten inches (10”), and a safety harness. Tools shall be returned to the employer upon termination.

57B. No member shall be allowed to use their personal cell for the purposes of the Employer’s business. Use of a cell phone on the jobsite for personal reasons shall be limited to emergencies only.

57C. The employer may assign use of any company vehicle to any employee they see fit, provided operating costs of said vehicle are paid by the Employer.

58. Where facilities are not available the Contractor shall provide an adequate shelter for his Employees to change clothes and eat lunch.

59. Safety equipment as provided by the Contractor is to be used by the Employee on all job sites.

ARTICLE 14

60. The Employer shall determine the number of men for each job with the understanding that at least 2 men shall be used on all jobs. However, under certain conditions it is recognized that 1 fitter may be sent to do small jobbing work in accordance with all Federal and State Safety Laws.

Should a question arise as to what constitutes a one man job or proper manning of underground, it is agreed that the Business Manager of Local 704 and one Contractor member from the Negotiating Committee shall discuss the situation towards a mutual resolution.

61. The rates provided in this Agreement and contributions shall be made on such Employees to the various fringe benefit funds as provided in this Agreement.

62. In the interest of maintaining and preserving employment in the area in which the work is being performed, it is preferred that Local Employees are the last laid-off.

ARTICLE 15

63. **JURISDICTION OF WORK:** The work of the sprinkler fitter and/or apprentice shall consist of the installation and maintenance of all fire protection and fire control systems including the unloading, handling by hand, power equipment and installation of all piping or tubing, appurtenances and equipment pertaining thereto, including both overhead and underground water mains, fire hydrants and hydrant mains, standpipes and hose connections to sprinkler systems, sprinkler tank heaters, air lines and thermal systems used in connection with sprinkler and alarm systems, also all tanks and pumps connected thereto, also included shall be

CO-2 and Halon, Dry Chemical Systems, Foam Systems, Tri-Water Systems and all other fire protection systems, but excluding steam fire protection systems.

63A. All applicable points of the 50 Articles of Jurisdiction of the United Association shall be incorporated by reference herein at Addendum B. The Articles of Jurisdiction do not expand the Employer's or the Union's rights under this Article.

ARTICLE 16

64. The parties to this Agreement acknowledge that they are subject to state and federal law and municipal ordinances regarding equal opportunity and fair employment. Therefore they will jointly take the necessary steps to comply with these laws and ordinances to assure, within the scope of this Agreement, compliance with equal opportunity and fair employment practice laws and ordinances. There shall be no discrimination with regard to a protected class as defined by the Federal Government or Michigan Law—by either the Union or the Employer—relative to employment or conditions of employment. Wherever the masculine gender is used in this agreement, it shall be deemed to include all genders.

ARTICLE 17

65. **GRIEVANCE PROCEDURE AND ARBITRATION:** During the term of this Agreement there shall be no strikes, lock-outs, slow-downs or work stoppages.

66. All disputes and grievances by Employees and Employers relative to the interpretation or application of this Agreement shall be processed in the following manner:

1. If an employee has a grievance relative to the interpretation or application of this Agreement, he shall advise the Business Manager of the Local Union.

2. The Business Manager shall contact the Employer within two working days and attempt to resolve said grievance. If he fails to resolve the grievance, the Business Manager shall:

3. Reduce the grievance to writing, setting forth the exact date of the alleged grievance, the nature of the grievance and the Article of the Agreement which has been violated and submit this to the National Fire Sprinkler Association, Inc. by registered or certified mail requesting a meeting.

Within four (4) working days of the receipt of said notice, the National Fire Sprinkler Association, Inc. shall confer with representatives of the Local Union and the Employer involved to resolve said grievance.

4. If the Union and the National Fire Sprinkler Association, Inc. fail to resolve the grievance, they shall immediately submit the grievance to final and binding arbitration as follows:

The Union and the National Fire Sprinkler Association, Inc. shall request from the American Arbitration Association a list of five names from which the Parties will select an arbitrator.

The Parties shall attempt, by mutual agreement, to select one of the five (5) names submitted by the American Arbitration Association. If they are unable to reach an agreement, the five names shall be placed in a hat and one name drawn, said name shall be the Chairman of the Board of Arbitration composed of one representative from the Union and one representative from the National Fire Sprinkler Association, Inc.

The majority decision of this Board of Arbitration of three shall be final and binding upon the Parties.

The Board of Arbitration must confine itself to the interpretation and application of the Agreement and has no power to alter, change or amend said agreement.

67. If the Employer or the Association has a grievance relative to the interpretation or application of this Agreement, the grievance shall be submitted to the Union in writing by registered or certified mail setting forth the exact date of the grievance, the nature of the grievance and the Article of the Agreement which has been violated.

68. The Union shall meet with the Employer within two working days of receipt of the grievance to discuss said grievance.

69. If the Parties fail to resolve the grievance the Union and the National Fire Sprinkler Association, Inc. with the Employer present, shall meet within four days of notice that the Parties did not resolve the grievance.

70. If the Union and the National Fire Sprinkler Association, Inc. fail to resolve the grievance it shall be submitted to final and binding arbitration as set forth herein.

71. Expense of arbitration shall be shared equally by the Union and the contractor.

72. All grievances to be considered must be submitted within ten (10) days of the occurrence of the alleged grievance.

73. Exceptions may be made to the above procedure and the Union will be free to strike under the following conditions:

1. Non-payment of wages or fringe contributions
2. Employees covered by this contract shall not be required to cross a legally established picket line unless a second gate is established as per Federal Law.

74. LATE FILING CLAUSE: It is agreed that in the event the Employer is delinquent at the end of the period in the payment of his contribution to the Health and Welfare, the Pension Fund, or other Funds created under this Agreement, in accordance with the rules and regulations of the Trustees of each Fund, the employees and/or their representatives shall have the right to take action that may be necessary until such delinquent payments are made; provided however,

that such action is subsequent to the Employer receiving notice in writing from the Welfare, Pension and/or Educational Trust Fund Administrator that said contractor is delinquent and it is further agreed that in the event such action is taken, the Employer shall be responsible for any loss incurred by the employees resulting therefrom. The Labor Management Cooperation Committee will review issues developing under this provision.

ARTICLE 18

75. **HEALTH AND WELFARE**: It is mutually agreed that a Health and Welfare Fund has been established on a National Automatic Sprinkler Industry basis for those Employees who are covered by this Collective Bargaining Agreement.

76. For the purpose of the support, maintenance and administration of the Fund, effective August 1, 2022, each contractor shall pay to the Fund Eleven Dollars and Forty-Four Cents (\$11.44) per hour for all hours worked by all employees who come under the jurisdiction of this Collective Bargaining Agreement unless otherwise provided for in this Agreement. This amount shall include \$9.99 for Level 1 NASI Health and Welfare Benefits and \$1.45 per hour for RESA. All future increases during the term of this agreement shall come from the economic package (See Article 6).

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein.

Employers party to this Agreement shall submit contributions to the Welfare, Pension, Apprenticeship, and Supplemental Unemployment Benefits Fund on or before the 15th day of the month following the calendar month in which the hours were worked.

77. Sprinkler Fitters Local 704 reserves the right to withdraw its participation in the National Automatic Sprinkler Industry Health and Welfare Fund. Should Local 704 elect to withdraw its participation, contributions to the Health and Welfare Fund shall be terminated and shall be allocated to wages.

ARTICLE 19

78. **PENSION**: It is mutually agreed that a Pension Fund has been established on a National Automatic Sprinkler Industry basis for those Employees covered by this collective bargaining agreement.

79. For the purpose of the support, maintenance and administration of this Pension Fund, each contractor who is Party to this Agreement, shall contribute to the National Automatic Sprinkler Industry Pension Fund for each hour worked by all employees covered by this Collective Bargaining Agreement effective August 1, 2022, Seven Dollars and Ten Cents (\$7.10) per hour for each hour worked. All future increases during the term of this agreement shall come from the economic package (See Article 6).

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein.

80. Employers party to this Agreement shall submit contributions to the Welfare, Pension, Apprenticeship, and Supplemental Unemployment Benefits Funds on or before the 15th day of the month following the calendar month in which the hours were worked.

ARTICLE 20

81. **UNIFORMITY OF FRINGE CONTRIBUTIONS:** Whereas this Agreement provides for contributions to the National Automatic Sprinkler Industry Welfare and Pension Funds by contractors party to this Agreement, and Whereas the Trustees of these Funds require uniform contributions to these Funds, therefore, the Welfare and Pension contributions as set forth in this Agreement shall be adjusted the 1st of January of each year so that the contributions required in this Agreement shall be uniform and identical with the hourly contribution as required by the Trust Board.

ARTICLE 21

82. **ASSENT OF HEALTH AND WELFARE AND PENSION:** In consideration of benefits to be derived and other good and valuable considerations, Sprinkler Fitters Local Union No. 704, Detroit, Michigan, although not a Party to the Local 669 Agreement, does hereby join in and does subscribe to the Declarations of Trust of the National Automatic Sprinkler Industry Welfare Fund and the National Automatic Sprinkler Pension Fund made between the National Fire Sprinkler Association, Inc. and Local Union 669, and agrees to be bound by any amendments thereto and the Employers to this Agreement with Sprinkler Fitters Local Union No. 704, Detroit, Michigan, agree to make contributions in the amounts as set forth in this Agreement to the Trustees as provided by the Trust Agreements between the National Fire Sprinkler Association, Inc. and Local Union 669, and further, the Parties hereto authorize said Parties of the 669 Agreement to name Trustees and successor Trustees to administer said Welfare and Pension Fund hereby ratifies and accepts such Trustees in the terms and conditions of said Trusts as fully and completely as if made by the undersigned.

ARTICLE 22

83. **NATIONAL AUTOMATIC SPRINKLER INDUSTRY APPRENTICE AND TRAINING FUND:** It shall be the duty of the Trustees of this Fund to collect contributions from the Employers who are party to this Agreement and to disburse from this Fund monies, less the expenses of collection and administration, for expenses incurred by the Joint Apprenticeship Committee in the territory embraced by this Agreement in carrying out the functions of the Apprenticeship Program.

84. In consideration of benefits to be derived the Union and Employers party to this Agreement, do hereby join in and subscribe to the Declaration of Trust dated as of May 23, 1966 of the "National Automatic Sprinkler Industry Apprenticeship and Training Fund" and agree to

be bound by amendments thereto and the Employers to the Agreement agree to make contributions as set forth in the Agreement to the Trustees, and, further, the parties to this Agreement authorize the parties of the "National Automatic Sprinkler Industry Apprentice and Training Fund" to name Trustees and successor Trustees, hereby ratifies and accepts such Trustees and the terms and conditions of said Trust as fully and completely as if made by the undersigned.

85. In order to carry out the functions of the Apprentice Program, each contractor who is a party to this Agreement shall pay to the "National Automatic Sprinkler Industry Apprentice and Training Fund" Ninety-Five Cents (\$0.95) per hour, effective August 1, 2022, for all hours worked by all Employees whose wages are covered by this Collective Bargaining Agreement.

86. Employers party to this Agreement shall submit contributions to the Welfare, Pension, Apprenticeship, and Supplemental Unemployment Benefits funds on or before the 15th day of the month following the calendar month in which the hours were worked.

ARTICLE 23

87. **SUPPLEMENTAL UNEMPLOYMENT BENEFITS:** For the purpose of the support, maintenance and administration of the fund each contractor who is a party to this Agreement shall contribute to the Detroit Supplemental Unemployment Benefit Fund One Dollar and Twenty Cents (\$1.20) per hour for each hour worked by all employees covered by this Collective Bargaining Agreement, effective August 1, 2022.

88. In the event that the total assets of this Fund should decline to a figure as determined by the Trustees of said Fund, an automatic payroll deduction of Ten Cents (\$0.10) per hour shall be taken from the wage rate and added to the contribution rate provided in the above paragraph effective immediately. When the total assets of this Fund reach a figure as determined by the Trustees of said Fund, such additional payroll deduction shall be immediately rescinded, and the contribution rate of this Fund shall revert to the amount provided above.

89. In consideration of benefits to be derived the Union and Employers, party to this Agreement, do hereby join in and subscribe to the Declaration of Trust dated as of August 1, 1969 of the "Detroit Supplemental Unemployment Trust Fund" and agree to be bound by amendments thereto and the Employers to the Agreement agree to make contributions as set forth in the Agreement to the Trustees, and further, the Parties to this Agreement authorize the parties of the "Detroit Supplemental Unemployment Trust Fund" to name Trustees and successor Trustees, hereby ratifies and accepts such Trustees and the terms and conditions of said Trust as fully and completely as if made by the undersigned.

90. An Owner/Employee will not be eligible to receive any benefits under the S.U.B. Plan unless during all periods of his employment with such Employer that qualifies him as an Owner/Employee, the Employer has filed reports and contributions on behalf of that Owner/Employee based upon not less than 160 hours for each calendar month during any part of which the Owner/Employee was employed in any capacity by that Employer.

91. Employers party to this Agreement shall submit contributions to the Welfare, Pension, Apprenticeship, and Supplemental Unemployment Benefits Fund on or before the 15th day of the month following the calendar month in which the hours were worked.

ARTICLE 24

92. **INDUSTRY FUND:** Effective August 1, 2022, employers shall pay to the National Fire Sprinkler Industry Promotion Fund a sum of money equal to Thirty Cents (\$0.30) per hour for each hour worked by each employee subject to this Agreement. It is understood that Six Cents (\$0.06) of the contribution shall be segregated and administered separately to be used for the purposes of contract administration, and the remaining Fourteen Cents (\$0.14) shall be used for National Programs, and Ten Cents (\$0.10) for Local Programs.

93. Employers agree to become a party to the Agreement and Declaration of Trust establishing the National Fire Sprinkler Industry Promotion Fund. It is understood and agreed that the fund and program of benefits at all times through the life of this agreement shall be such as to qualify for approval by the Internal Revenue Bureau of the United States Treasury Department and other appropriate government agencies if necessary to permit all employers an income tax deduction for contributions paid.

ARTICLE 25

94. **SURETY BOND:** The Union and each Employer by executing this Agreement do hereby adopt and subscribe to and agree to be bound by the terms of a certain Agreement and Declaration of Trust dated December 10, 1986 entered into by the Union and National Fire Sprinkler Association, Inc. pursuant to which a Security Deposit Account has been established for the purpose of providing security for payment by Employers of wages, and fringe benefit contributions such as vacation, holiday, health, welfare and pension funds, overtime pay, car fare, and liquidated damages which shall become payable by such Employers pursuant to the terms of this Agreement.

95. Effective August 1, 2022, each Employer who is a party to this Agreement shall deposit with the Trustees of the Security Deposit Account a surety bond or cash bond in the appropriate amount according to the following schedule:

1 to 5 Employees \$65,000
6 to 10 Employees \$90,000
11 or more Employees \$125,000

These bonds are to be held, administered and disposed of by the Trustees of the Security Deposit Account in accordance with the terms of said Agreement and Declaration of Trust. The Trustees of the Security Deposit Account will forward to Local Union 704 and the National Fire Sprinkler Association a copy of the Surety Bond face sheet in accordance with the terms of this Article.

On a quarterly basis, the union will provide NFSA a list of contractors that do not have bonds in the proper amount. Notwithstanding any other provision in their contract, the union shall strike any contractor covered by this agreement if the contractor does not have an appropriate bond, as indicated above, in place by January 1, 2023.

96. The Union and the Employers agree that said Security Deposit Account shall at all times be maintained in accordance with the written Trust Agreement as the same may be amended from time to time by the Trustees thereof; that the Security Deposit Account shall be administered by a Board of Trustees pursuant to said Trust Agreement one-half of whom shall be appointed by the Union and one-half of whom shall be appointed by the National Fire Sprinkler Association, Inc. The Union and said Association shall select successor Trustees or alternate Trustees as vacancies occur. Decisions of the Trustees shall be by majority vote provided that the number of votes cast by Employer Trustees and Union Trustees shall be equal in number. In the event of a deadlock between the Trustees, the Trustees shall endeavor to select an impartial umpire to break such deadlock and if the Trustees are unable to agree on an impartial umpire, on petition of either side, an impartial umpire can be appointed by the United States District Court for the Eastern District of Michigan Southern Division. The trust fund shall be subject to an annual audit.

97. All bonds required under this article shall be paid to or delivered to the Trustees of the Security Deposit Account within two weeks (14 days) after the effective date of this Agreement. If an Employer should fail to post a bond as required by this Article and is delinquent in the payment of any contributions to any of the employee benefit funds under this Agreement for a period of thirty (30) days after the required reporting and payment date, then the Union shall remove the employees from the employer.

ARTICLE 26

98. **PAYROLL DEDUCTION AUTHORIZATION:** The Employer agrees that upon receiving individual written authorization from the Employees, he shall deduct from the Employee's "Net Wages" Six Dollars and Sixteen Cents (\$6.16) per hour for each man hour earned effective August 1, 2022.

The amounts so deducted from the net wages of each man hour worked shall be distributed as follows: Craft Protection Fund \$0.06, Union Assessment \$5.84, S & E Fund \$0.24, and \$0.02 for Retiree Holiday.

99. "Net Wages" shall be defined as the gross wages less all deductions (as an example, but not limited to, federal, state and other taxes, group insurance, bond deductions, and so forth).

100. The Employer shall make out a check payable to the bank of the union's choosing. Such deductions shall be computed and deducted weekly and remitted to the Local 704 monthly, not later than the 15th day of each month following the month in which the wages were paid.

101. **AUTHORIZATION FOR INDIVIDUAL PAYROLL DEDUCTION
SPRINKLER FITTERS LOCAL UNION**

To: Any and all Employers signatory to a Collective Bargaining Agreement with Local Union 704.

I, the undersigned, do hereby authorize my Employer to withhold from my payroll Six Dollars and Sixteen Cents (\$6.16) per hour for each hour worked, which will be forwarded to a bank of the union's choosing.

This authorization is made pursuant to the provisions of Section 302 (c) of the Labor Management Relations Act of 1947 and otherwise shall be effective August 1, 2022, or the date of execution, whichever is later.

(DATE) _____
(SIGNATURE) _____
(LOCAL) _____
(U.A. CARD NUMBER) _____
(SOCIAL SECURITY NUMBER) _____
(NAME) _____
(ADDRESS) _____
(CITY STATE) _____

102. The Union agrees to save and hold the Employer and the National Fire Sprinkler Association, Inc. harmless from any action, claim loss, damage, or the like, including all attorney's fees arising from or in any way connected with any deductions made pursuant to this article.

ARTICLE 27

103. SUPPLEMENTAL PENSION: It is mutually agreed that a Sprinkler Fitters and Apprentices Local Union No. 704 Defined Contribution Pension Fund is established for those employees whose wages are covered by this collective bargaining agreement.

104. For the purpose of the support, maintenance and administration of the fund, each contractor who is a party to this Agreement shall pay to the fund Ten Dollars (\$10.00) per hour for all hours worked by all employees covered by this Collective Bargaining Agreement, effective on and after August 1, 2022.

105. The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein.

106. This fund is created under an Agreement and Declaration of Trust by and between National Fire Sprinkler Association, Inc. and Sprinkler Fitters and Apprentices Local Unions No. 704, Detroit. There shall be an equal number of Association and Union Trustees, appointed by the respective parties to this Agreement. It shall be the duty of the trustees to administer the Agreement and Declaration of Trust in accordance with Federal and State Laws and to take all necessary steps to carry out the legal operation of the fund.

107. The Employers bound by this Agreement do hereby join in and subscribe to the Agreement and Declaration of Trust of the Sprinkler Fitters and Apprentices Local 704 Defined Contribution Pension Fund and agree to be bound by any amendments thereto.

107A. Employers party to this Agreement shall submit contributions to the Sprinkler Fitters and Apprentices Local 704 Defined Contribution Pension Fund on or before the 15th day of the month following the calendar month in which the hours were worked.

ARTICLE 28

108. This Agreement shall be from August 1, 2022, to July 31, 2027.

ARTICLE 29

109. **SAVINGS CLAUSE:** In accordance with the intent and agreement of the parties, the provisions of this Collective Bargaining Agreement shall be interpreted and construed in a manner which is consistent with all applicable Federal and State laws. In the event, however, that any article or provision to this Agreement shall be declared invalid, inoperative or unenforceable by any competent authority of the executive, legislative or judicial branch of the Federal or any State government, the Employer and the Union shall suspend the operation of such article or provision during the period of its invalidity and shall substitute, by mutual consent in its place and stead, an article or provision which will meet the objections to its validity and which will be in accord with the intent and purposes of the article or provision in question.

110. If any article or provision of this Agreement shall be held invalid, inoperative or unenforceable by operation of law or by any of the above mentioned authorities of competent jurisdiction, the remainder of this Agreement or the application of such article or provision to persons or circumstances other than those as to which it has been held invalid, inoperative and unenforceable shall not be affected thereby.

ARTICLE 30

111. **PROVISIONS FOR RENEWAL OF AGREEMENT:** This Agreement shall remain in full force and affect until the first day of August, 2027, and thereafter shall renew itself from year to year unless either party hereto shall notify the other party, in writing, at least sixty (60) days prior to any anniversary date of this Agreement of its desire to change the Agreement in any way or to terminate the Agreement. Such written notice shall be sent by registered or

certified mail to the other party. In the event of notice by either party to change and/or terminate this Agreement, and no agreement on such changes and/or termination is reached prior to August 1, 2027, this Agreement shall be deemed to have terminated on July 31, 2027.

ARTICLE 31

112. UNITED ASSOCIATION INTERNATIONAL TRAINING FUND: In order to carry out the functions of the International Training Fund, each contractor who is party to this Agreement shall forward to the NASI Fund Office Ten Cents (\$0.10) per hour for all hours worked by all Journeymen and Apprentices whose wages are covered by this Collective Bargaining Agreement, effective August 1, 2022. NASI will forward these contributions to the United Association International Training Fund.

ARTICLE 32

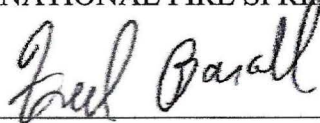
113. The Letters of Understanding and Standard for Excellence attached hereto are made a part hereof.

114. The Joint Apprenticeship Committee shall review the Apprenticeship Standards to determine what changes, if any, are necessary or would be helpful to recapturing the market.

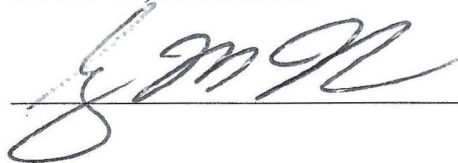
115. A Labor Management Cooperation Committee ("LMCC") shall be established to meet at such times and to discuss such issues as the parties may agree, including but not limited to targeting concerns.

Dated this 16th day of August, 2022

NATIONAL FIRE SPRINKLER ASSOCIATION, INC.



SPRINKLER FITTERS AND APPRENTICES LOCAL UNION NO. 704
DETROIT, MICHIGAN



ADDENDUM A

STANDARD FOR EXCELLENCE

MEMBER AND LOCAL UNION RESPONSIBILITIES:

To ensure the **UA Standard for Excellence** platform meets and maintains its goals, the Local Union Business Manager, in partnership with his implementation team, including shop stewards and the local membership, shall ensure all members:

- Meet their responsibilities to the employer and their fellow workers by arriving on the job ready to work, every day on time (Absenteeism and tardiness will not be tolerated.)
- Adhere to the contractual starting and quitting times, including lunch and break periods (Personal cell phones will not be used during the workday with the exception of lunch and break periods.)
- Meet their responsibility as highly skilled crafts workers by providing the required tools as stipulated under the local Collective Bargaining Agreement while respecting those tools and equipment supplied by the employer
- Use and promote the local union and international training and certification systems to the membership so they may continue on the road of lifelong learning, thus ensuring UA crafts workers are the most highly trained and sought after workers
- Meet their responsibility to be fit for duty, ensuring a zero tolerance policy for substance abuse is strictly met
- Be productive and keep inactive time to a minimum
- Meet their contractual responsibility to eliminate disruptions on the job and safely work towards the on-time completion of the project in an auspicious manner
- Respect the customers' property (Waste and property destruction, such as graffiti, will not be tolerated.)
- Respect the UA, the customer, client and contractor by dressing in a manner appropriate for our highly skilled and professional craft (Offensive words and symbols on clothing and buttons are not acceptable.)
- Respect and obey employer and customer rules and policies
- Follow safe, reasonable and legitimate management directives

EMPLOYER AND MANAGEMENT RESPONSIBILITIES:

MCAA/MSCA, PFI, MCPWB, PCA, UAC and NFSA and their signatory contractors have the responsibility to manage their jobs effectively, and as such have the following responsibilities under the **UA Standard for Excellence**.

- Replace and return to the referral hall ineffective superintendents, general foremen, foremen, journey workers and apprentices
- Provide worker recognition for a job well done
- Ensure that all necessary tools and equipment are readily available to employees

- Minimize workers' downtime by ensuring blueprints, specifications, job layout instructions and material are readily available in a timely manner
- Provide proper storage for contractor and employee tools
- Provide the necessary leadership and problem-solving skills to jobsite Supervision
- Ensure jobsite leadership takes the necessary ownership of mistakes created by management decisions
- Encourage employees, but if necessary, be fair and consistent with discipline
- Create and maintain a safe work environment by providing site specific training, proper equipment and following occupational health and safety guidelines
- Promote and support continued education and training for employees while encouraging career building skills
- Employ an adequate number of properly trained employees to efficiently perform the work in a safe manner, while limiting the number of employees to the work at hand, thereby providing the customer with a key performance indicator of the value of the **UA Standard for Excellence**
- Treat all employees in a respectful and dignified manner, acknowledging their contributions to a successful project
- Cooperate and communicate with the Job Steward

PROBLEM RESOLUTION THROUGH THE UA STANDARD FOR EXCELLENCE POLICY:

Under the **UA Standard for Excellence** it is understood, that members through the local union, and management through the signatory contactors, have duties and are accountable in achieving successful resolutions.

MEMBER AND LOCAL UNION RESPONSIBILITIES:

- The Local Union and the Steward will work with members to correct and solve problems related to job performance.
- Job Stewards shall be provided with steward training and receive specialized training with regard to the **UA Standard for Excellence**.
- Regular meetings will be held where the job steward along with UA Supervision will communicate with the management team regarding job progress, work schedules, and other issues affecting work processes.
- The Job Steward shall communicate with the members about issues affecting work progress.
- The Business Manager or his delegate will conduct regularly scheduled meetings to discuss and resolve issues affecting compliance of the **UA Standard for Excellence** policy.
- The Steward and management will attempt to correct such problems with individual members in the workplace.
- Individual members not complying with membership responsibility shall be brought before the Local Union Executive Board, which will address such members' failure to meet their obligation to the local and the UA, up to and including filing charges. The Local Union's role is to use all available means to correct the compliance problem.

EMPLOYER AND MANAGEMENT RESPONSIBILITIES:

- Regular meetings will be held where the management team and UA Supervision will communicate with the Job Steward regarding job progress, work schedules, and other issues affecting the work process.
- Management will address concerns brought forth by the Steward or UA Supervision in a professional and timely manner.
- A course of action shall be established to allow the job Steward and/or UA Supervision to communicate with higher levels of management in the event there is a breakdown with the responsible manager.
- In the event that the employee is unwilling or unable to make the necessary changes, management must make the decision whether the employee is detrimental to the **UA Standard for Excellence** platform and make a decision regarding his further employment.

ADDITIONAL JOINTLY SUPPORTED METHODS OF PROBLEM RESOLUTION:

- In the event an issue is irresolvable at this level, the Local or the Contractor may call for contractually established Labor Management meeting to resolve the issues.
- Weekly job progress meetings should be conducted with Job Stewards, UA Supervision and Management.
- The Local or the Contractor may involve the customer when their input is prudent in finding a solution.
- Foremen, General Foremen, Superintendents and other management should be educated and certified as leaders in the **UA Standard for Excellence** policy.

ADDENDUM B

The following is the jurisdiction of work of the United Association of Journeymen and Apprentices of the Plumbing and Pipe Fitting Industry of the United States and Canada:

1. All piping, valves, Building Information Modeling (BIM), computerized global positioning systems, computer aided drafting and/or hand detail drawing for plumbing, water, waste, floor drains, drain grates, supply, leader, soil pipe, grease traps, sewage and vent lines, as well as all pipe bursting and pipe lining.
2. All piping for water filters, water softeners, water meters and the setting of same.
3. All cold, hot and circulating water lines, piping for house pumps, cellar drainers, ejectors, house tanks, pressure tanks, swimming pools, ornamental pools, display fountains, drinking fountains, aquariums, plumbing fixtures and appliances, and the handling and setting of the above mentioned equipment.
4. All water services from mains to buildings, including water meters and water meter foundations.
5. All water mains from whatever source, including branches and fire hydrants, etc.
6. All down spouts, drainage areas, soil pipes, catch basins, manholes, drains, gravel basins, storm water sewers, septic tanks, cesspools, water storage tanks, gray water, rainwater and reclaimable water collection of every type and description used for plumbing and pipefitting systems, etc.
7. All liquid soap piping, liquid soap tanks, soap valves, and equipment in bath and washrooms, shower stalls, etc.
8. All bathroom, toilet room and shower room accessories, i.e. as towel racks, paper holders, glass shelves, hooks, mirrors, cabinets, etc.
9. All lawn sprinkler work, including piping, fittings, and lawn sprinkler heads.
10. All sheet lead and copper lining for X-ray rooms, fountains, swimming pools or shower stalls, tanks or vats for all purposes and for roof flashings in connection with the pipe fitting industry.
11. All fire stand pipes, fire pumps, pressure and storage tanks, valves, hose racks, fire hose, cabinets and accessories, and all piping for sprinkler work of every description.
12. All block tin coils, carbonic gas piping for soda fountains and bars, etc.
13. All piping for railing work and racks of every description, whether screwed or welded.
14. All piping for pneumatic vacuum cleaning systems of every description.

15. All piping for hydraulic, vacuum, pneumatic, air, water, steam, oil, or gas, used in connection with railway cars, railway motor cars, and railway locomotives.
16. All marine piping, and all piping used in connection with ship building and ship yards.
17. All power plant piping of every description.
18. The handling, assembling, and erecting of all economizers, super-heaters, regardless of the mode or method of making joints, hangers, and erection of same.
19. All internal and external piping on boilers, heaters, tanks and evaporators, water legs, water backs and water grates, boiler compound equipment, etc.
20. All soot blowers and soot collecting piping systems.
21. The setting, erecting, and piping for all smoke consuming and smoke washing and regulating devices.
22. The setting, erecting and piping of instruments, measuring devices, thermostatic controls, gauge boards, and other controls used in connection with power, heating, refrigerating, air conditioning, manufacturing, mining, and industrial work.
23. The setting and erecting of all boiler feeders, water heaters, filters, water softeners, purifiers, condensate equipment, pumps, condensers, coolers, and all piping for same in power houses, distributing and boosting stations, refrigeration, bottling, distilling, and brewing plants, heating, ventilating and air-conditioning systems.
24. All piping for artificial gases, natural gases, and holders and equipment for same, chemicals, minerals and by-products and refining of same, for any and all purposes, as well as all radon piping and all methane recovery systems, and all cryogenic Magnetic Resonance Imaging (MRI) quenching vents.
25. The setting and erecting of all underfeed stokers, fuel burners, and piping, including gas, oil, power fuel, hot and cold air piping, and all accessories and parts of burners and stokers, etc.
26. All ash collecting and conveyor piping systems, including all air washing and dust collecting piping and equipment, accessories and appurtenances and regulating devices, etc.
27. The setting and erection of all oil heaters, oil coolers, storage and distribution tanks, transfer pumps, and mixing devices, and piping thereto of every description.
28. The setting, erecting and piping of all cooling units, pumps, reclaiming systems, and appurtenances, in connection with transformers, and piping to switches of every description.
29. All fire extinguishing systems and piping, valves, Building Information Modeling (BIM),

computerized global positioning systems, and computer aided drafting and/or hand detail drawing, whether by water, steam, gas, or chemical, fire alarm piping, Very Early Smoke Detection Apparatus (VESDA) systems, Aircurity air sampler systems, and control tubing, etc.

30. All piping for sterilizing, chemical treatment, deodorizing, and all cleaning systems of every description, and laundries for all purposes.

31. All piping for oil or gasoline tanks, gravity and pressure lubricating and greasing systems, air and hydraulic lifts, etc.

32. All piping for power or heating purposes, either by water, air, steam, gas, oil, chemicals, geothermal, solar or any other method.

33. All piping, setting and hanging of all units and fixtures for air-conditioning, cooling, heating, rooftop units, refrigerating, ice making, humidifying, dehumidifying and dehydrating by any method, including but not limited to Variable Air Volume (VAV) systems, chilled beam coils, Variable Refrigerant Volume (VRV) systems, and Variable Refrigerant Flow (VRF) systems, and the charging, testing, and servicing of all work after completion.

34. All pneumatic tube work, and all piping for carrying systems by vacuum, compressed air, steam, water, or any other method.

35. All piping to stoves, fire grates, blast and heating furnaces, ovens, driers, heaters, oil burners, stokers, and boilers and cooking utensils, etc. of every description.

36. All piping in connection with central distributing filtration treatment stations, boosting stations, waste and sewage disposal plants, central chlorination and chemical treatment work, and all underground supply lines to cooling wells, suction basins, filter basins, settling basins, and aeration basins.

37. All process piping, valves, Building Information Modeling (BIM), computerized global positioning systems, computer aided drafting and/or hand detail drawing for refining, manufacturing, industrial, and shipping purposes of every character and description.

38. All air piping of every description.

39. All temporary piping of every description in connection with building and construction work, excavating and underground construction.

40. The laying out of piping systems by any mode or method (including computerized global positioning systems) and cutting of all holes, chases and channels, the setting and erection of bolts, helical piers, inserts, stands, brackets, supports, sleeves, thimbles, hangers (including all seismic hangers), conduit and boxes, used in connection with the pipe fitting industry.

41. The handling and setting of boilers, setting offronts, setting of soot blowers, and attaching of all boiler trimmings.

42. All pipe transportation lines for gas, oil, gasoline, fluids and liquids, water aqueducts, water lines, and booster stations of every description.
43. All acetylene and arc welding, brazing, lead burning, soldered and wiped joints, caulked joints, expanded joints, rolled joints, or any other mode or method of making joints in connection with the pipefitting industry.
44. Laying out (including any computerized global positioning systems used in the fabrication process), cutting, bending and fabricating of all pipe work of every description, by whatever mode or method.
45. All methods of stress relieving and induction heating of all pipe joints made by every mode or method.
46. The assembling and erecting of tanks, used for mechanical, manufacturing or industrial purposes, to be assembled with bolts, packed or welded joints.
47. The handling and using of all tools and equipment that may be necessary for the erection, installation, maintenance, and servicing of all work and materials used in the pipe fitting industry.
48. The operation, maintenance, repairing, servicing, inspecting, testing, including but not limited to nondestructive examination, commissioning, renovation, upgrading, modernization, replacement and dismantling of all work installed by journeymen members of the United Association, as well as the installation of all pipe tracer wire.
49. All piping for cataracts, cascades (i.e. artificial water falls), make-up water fountain, captured waters, water towers, cooling towers, and spray ponds used for industrial, manufacturing, commercial, or for any other purposes.
50. Piping herein specified means pipe made from metals, tile, glass, rubber, plastics, wood, or any other kind of material, or product manufactured into pipe, usable in the pipe fitting industry, regardless of size or shapes.

LETTER OF UNDERSTANDING

It is mutually agreed by the parties to this Agreement that, effective August 1, 2022, the parties shall meet in late September 2022 and to meet regularly thereafter if no agreement is reached to discuss the terms and conditions of a Residential Addendum, and a Drug and Alcohol testing policy for current employees which shall include the terms of the Drug and Alcohol Letter of Understanding attached hereto.

Additionally, all employees shall maintain and update compliance with MUST training requirements by January 1, 2022. Both parties will encourage all employees to become OSHA 30 certified as soon as possible.

Date August 16, 2022



National Fire Sprinkler Association Inc.



Detroit Local Union 704

LETTER OF UNDERSTANDING

Drug and Alcohol:

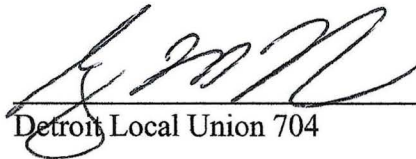
The NFSA and Local 704 acknowledge that the use of alcohol and illicit drugs that impair work performance is detrimental to the health and safety of the Employees covered by this Article. It is also acknowledged that Employees suffering from an alcohol or drug related problem should be afforded the opportunity to remedy their health problem. Therefore, it is hereby agreed by the parties as follows:

1. An Employee shall not report for work in a condition unfit for work due to the use of alcohol, illegal drugs, or other illegal substances that impair his/her work performance.

Date August 16, 2022



National Fire Sprinkler Association Inc.



Detroit Local Union 704

Memorandum of Agreement – Local 704 Targeting

1. Local 704 shall maintain a target fund and use it for the mutual benefit of Local 704 members and union signatory contractors. The project must have at least 1 non-union company bidding on said project. All requests shall be submitted on the grant request form developed by the LMCC and are subject to timely verification by Local 704.
2. If a targeting request is incomplete, untimely, or fraudulent, the contractor shall not receive approval. All properly submitted targeting requests and grants will be considered on an equal basis and shall remain confidential.
3. To be eligible for a targeting grant, the contractor must be signatory to Local 704's collective bargaining agreement, current in the payment of wages and benefit fund contributions, and not suspended or disqualified. Any company which knowingly submits a fraudulent targeting request or fraudulent time sheets for payment will not be eligible for the target fund for a 6-month period for the first offense and for the remainder of the contract for the second offense.
4. All approvals for targeting requests shall be irrevocable for 60 days and shall automatically renew for successive 60-day periods, so long as the contractor provides notice that the job is still open.
5. Bid amount shall be given to the union at the time of grant confirmation.
6. Targeting will be paid only on the granted amount. The payment schedule shall be the following:
 - a. When the project reaches 25% completion, the first request for payment shall be submitted with the corresponding signed time sheets.
 - b. The same shall be the schedule for 50% and 75% completion of the project.
 - c. Final payment shall be 100% completion with signed time sheets, in addition to confirmation of project completion signed by the foreman.
 - d. The date of the confirmation signature shall be the date of the completion and the closure of the grant.
7. All requests for payment shall be honored within 45 days of receipt of all proper paperwork and time sheets signed by all members on the project. All requests for payment shall be signed under penalty of perjury after the 10th of the month and shall be paid the following month.
8. Any grant that has no reported hours for a period of 6 months shall be considered closed. If a contractor ceases operations in Local 704's jurisdiction, any confirmed grant shall be considered closed.
9. A Labor-Management Cooperation Committee (LMCC) consisting of 3 members appointed by Local 704 and 3 members appointed by NFSA shall meet at least quarterly to discuss these targeting guidelines and any proposed changes. The LMCC shall have

the right to information necessary to perform its function, including the available fund balance. Local 704 reserves all rights to management and usage of the target fund.

10. Only duties covered in Paragraph 63 shall be eligible under this program for all members. Deliveries and non-working supervision shall be excluded.
11. This targeting program shall be effective January 1, 2023.